



File No.: EXP202302365

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, and noting indications of a possible breach of the provisions of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), actions were initiated under file number EXP202200361. The complaint was accepted for processing on April 3, 2022.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the supervisory authorities in Article 57.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, a request for information was sent to RING RING CLIN S.L. with NIF B05359799, regarding the complaint mentioned in the first section, requesting that, within ten working days, it present to this Agency the information and documentation indicated therein. The request was registered as sent on October 24, 2022.

THIRD: The request for information, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received by RING RING CLIN S.L. on November 1, 2022, as evidenced by the acknowledgment of receipt in the file.

FOURTH: On November 28, 2022, a document was registered in this Agency, with number REGAGE22e00054171301, in which RING RING CLIN S.L. claims that it cannot provide the requested information because the contract for the user of the telephone line for which information is requested was made by the company ALPEAN SERVICIOS S.L., as its subcontractor, who made the client call, and that this information should be requested from that company.

FIFTH: Following the response from RING RING CLIN S.L. on November 28, 2022, two new requests for information were sent, asking that, within ten working days, it provide this Agency with the contract signed with the aforementioned subcontractor. The requests were registered as sent on December 20, 2022, and January 12, 2023.

These requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were received by RING RING CLIN S.L. on December 21, 2022, and January 23, 2023, as evidenced by the acknowledgments of receipt in the file.

SIXTH: RING RING CLIN S.L. has not submitted the requested documentation to this Spanish Agency for Data Protection.

SEVENTH: According to the report obtained from the AXESOR tool, the entity RING RING CLIN S.L. was established in 2021 with a capital of 3,100 euros and has never filed Annual Accounts.

EIGHTH: On March 8, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against RING RING CLIN S.L., in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

NINTH: The aforementioned initiation agreement was received by RING RING CLIN S.L. on March 17, 2023, as evidenced by the acknowledgment of receipt in the file.

TENTH: On April 10, 2023, and with entry registration number REGAGE23e00023142788, RING RING CLIN S.L. submitted a written statement of allegations in which it states that it has been making the necessary arrangements for its dissolution, one of which is the process of destroying company documentation, which is the reason why it has not been able to provide the requested information.

ELEVENTH: According to the information in the Commercial Register, RING RING CLIN S.L. is registered in the Commercial Register of Albacete, Section 8, Sheet 28734, and its status is Active. From the information collected in Axesor, there is no record of any acts of dissolution or any other kind published in the Official Bulletin of the Commercial Register (BORME) since the establishment of the company in 2021.

TWELFTH: On April 24, 2023, a proposal for resolution was made, in which it was proposed that the Director of this Agency sanction RING RING CLIN S.L. for an infringement of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR, with a fine of €500.00. This proposal for resolution was duly notified to the accused party, and no allegations have been presented against it.

PROVEN FACTS

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FIRST: The information requests indicated in the fifth antecedent were notified electronically, in accordance with the provisions of Article 43 of the LPACAP.

SECOND: RING RING CLIN S.L. has not responded to these information requests within the timeframes granted for this purpose, within the framework of the investigation proceedings referenced with the code EXP202200361.

THIRD: The notification of the agreement to initiate the present sanctioning procedure was carried out in accordance with the provisions of Article 43 of the LPACAP on March 17, 2023.

FOURTH: RING RING CLIN S.L. has submitted allegations regarding the initiation agreement of this sanctioning procedure, as recorded in the tenth antecedent.

FIFTH: RING RING CLIN S.L. is a company established in 2021 and continues its activity as of the present date, according to the information available in the Commercial Registry and in the publications of the BORME of the entity recorded in Axesor.

SIXTH: The notification of the proposed resolution was received by RING RING CLIN S.L. on May 4, 2023.

SEVENTH: RING RING CLIN S.L. has not submitted allegations regarding the proposed resolution of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations regarding the initiation agreement of the present file submitted by RING RING CLIN S.L., the following should be noted.

The first unaddressed information request, for which a response period of ten working days was granted, was notified on December 21, 2022. Additionally, another information request was made, notified on January 23, 2023, for which a response period of ten working days was again granted, and the initiation of the sanctioning procedure was agreed upon on March 8, 2023, without any response having been received to either of these two requests by that date.

The response to the information requests during the instruction of this procedure does not affect the

existence of the proven facts constituting an infringement.

Regarding the information communicated in the allegations, this Agency acknowledges receipt, without this statement implying any pronouncement on it. It is warned that the lack of a contract with a data processor may constitute an infringement of Article 28 of the GDPR, which states in its paragraph 3: "The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, binding the processor to the controller and establishing the subject matter, duration, nature and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller."

III

Obligation not fulfilled

In accordance with the evidence available, it is considered that RING RING CLIN S.L. has not provided the Spanish Data Protection Agency with the information it requested prior to the agreement to initiate the present sanctioning procedure.

With the aforementioned conduct of RING RING CLIN S.L., the investigative power that Article 58.1 of the GDPR grants to supervisory authorities, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to RING RING CLIN S.L., for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions; b) to carry out investigations in the form of data protection audits; c) to carry out a review of the certifications issued pursuant to Article 42, paragraph 7; d) to notify the controller or the processor of the alleged infringements of this Regulation; e) to obtain from the controller and the processor access to all personal data and all information necessary for the exercise of its functions; f) to obtain access to all premises of the controller and the processor, including any equipment and means of processing data, in accordance with Union or Member State procedural law."

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IV

Classification and Qualification of the Infraction

In accordance with the available evidence, it is considered that the facts presented constitute an infraction, attributable to RING RING CLIN S.L.

This infraction is classified under Article 83.5.e) of the GDPR, which defines it as: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infraction may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to a maximum of four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infractions, the infraction attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"ñ) Failure to provide access to personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers.
o) Resistance or obstruction to the exercise of the inspection function by the competent data protection authority."

V

Imposed Sanction

In light of the facts presented, it is considered appropriate to attribute to RING RING CLIN S.L. the violation of Article 58.1 of the GDPR as classified in Article 83.5.e) of the GDPR. The sanction to be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in

accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating factors apply.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on RING RING CLIN S.L., with NIF B05359799, for an infraction of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €500.00 (FIVE HUNDRED euros).

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SECOND: TO ORDER RING RING CLIN S.L. that, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, the information requested in the requirements made within the framework of the proceedings numbered EXP202200361, to which reference has been made in the background of this resolution, be provided within ten working days.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

THIRD: TO NOTIFY this resolution to RING RING CLIN S.L.

FOURTH: To inform the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

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If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The interested party must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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